

Terms and Conditions



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2026

GREENDAWN

Greendawn Power Limited - Electric Vehicle (EV) Charge Point Installation Terms & Conditions

1. Definitions

In these Terms & Conditions and the Contract, when the following words are used, they have the meanings shown below:

Additional Works means any additional works required at the Site(s) to enable Installation;

Additional Works Charge means the charge attributable to any Additional Works as set out in the Additional Works Quotation;

Additional Works Quotation means a quotation for the Additional Works;

Advance Payment means the amount set out in the Order or, if no amount is set out in the Order, an amount equivalent to 50% of the Installation Charge ;

CDM Regulations means the Construction (Design & Management) Regulations 2015;

Charge Point means a station for the charging of Electric Vehicles (and all associated and ancillary equipment and cabling) to be provided to the Customer in accordance with this Contract;

Charge Point Software means the software required to enable users to access and operate the Charge Point and pay for services consumed, including application of Charging Card or Key Fob;

Charge Point Software Provider means the supplier of the Charge Point Software, with whom the Customer will contract with directly in accordance with the terms and conditions of the Charge Point Software Provider enclosed with the Order;

Charging Card or Key Fob means the devices which provide access to the Charge Point(s) and which shall be provided to the Customer in accordance with a Contract

Connection Point means the point of connection at which a supply of electricity will flow between the Distribution System and the Installation following Energisation;

Connection Works means the works required to connect the Charge Point to the Connection Point;

Contract means;

- (a) the Order;
- (b) these Terms & Conditions

provided that if there is any conflict between the contents of the above documents, for the purposes of interpretation, the order of priority will be as listed above. For the avoidance of doubt, the Parties agree that any terms and conditions attached or referred to in a purchase order or invoice other than the Contract, shall be irrelevant and not bind either Party in relation the provision of the Services;

Customer Works means any necessary preparatory works to be carried out by the Customer to enable the Installation to commence and the Charge Point to be Energised;

Customer means the person or organisation who, subject to the terms hereof, wish to engage Greendawn to install Charge Point(s) and provide ancillary services at the Customer's Site(s);

Distribution System means DNO's electricity distribution system;

DNO means the relevant distribution network operator for the Site location;

Electric Vehicle means a vehicle for the road fully or partially proposed by an electric motor which uses electricity which is stored in any way and which is chargeable through a Charge Point;

Eligibility Criteria means the eligibility criteria as defined in the OZEV Grant Form;

Energise means initiating the electrical current to flow to or from the Distribution System to and, where applicable, from the Charge Point at the Connection Point;

Force Majeure means any epidemic, pandemic, industrial dispute, war (whether declared or undeclared), fire, accident, governmental action, civil commotion or any other cause beyond the relevant party's control;

Greendawn means Greendawn Power Limited (registered in England and Wales with company number 12758202);

Hazardous Substances means any material, substance or organism which, alone or in combination with others, is capable of causing harm to air, water, land or any living organism or ecosystem;

Installation means the installation of the Charge Point(s), the Connection Works and any associated works at the Site(s) or adjacent to the Site(s) in accordance with the Contract and "Install" and "Installed" shall be construed accordingly;

Installation Charge means the amount due in respect of an Installation as detailed in the relevant Order;

Installer means Greendawn's engineers (and any subcontractors) as may be appointed from time to time;

Intellectual Property Rights means patents, trademarks, registered designs and all applications for registration of them, copyrights or design rights, any moral right, any know how, any trade or business name, any right to bring an action for passing off or any right, whether subsisting now or in the future, which is similar or analogous to any of these in any part of the world;

Order means a written quotation provided by Greendawn, that includes a Quotation Support Guide and detailing the Specification, SoW, RAMS, Product Proposition and Installation Charge applicable for a proposed Installation;

Product Proposition means a product proposition setting out the details of the Services to be supplied to the Customer;

Quotation Support Guide means the guide issued to the Customer setting out the Product Proposition;

Site(s) means the locations where the Customer requests Greendawn Installs the Charge Point(s) as set out in the Contract;

Terms & Conditions means the terms and conditions set out in this document;

Risk Assessment & Method Statements (RAMS) means the safety management document(s) detailing any significant safety risks in undertaking the works described in the SoW;

Services the installation of Charge Points at the Customer's Sites and ancillary services supplied in accordance with terms of the Contract;

Site Survey means a survey of the Site(s) to be conducted at the Site(s) by the Installer in accordance with clause 5;

Statement of Works (SoW) means the detailed breakdown of all works to be undertaken by the Installer to complete a relevant Installation hereunder.

2. Order

- 2.1 The Customer may request and Greendawn shall agree to perform Installation(s) by validly signing the Order issued by Greendawn. For the avoidance of doubt, the Contract for a Site shall only become binding following the Customer's written acceptance of the Order in accordance with this clause 2.1.

3. Term

- 3.1 The Contract shall come into effect on the date of the Customer's written acceptance of the Order pursuant to clause 2.1 and, subject to early termination in accordance with this Contract, shall continue for the period set out in the Order.

4. Site

4.1 The Customer warrants to Greendawn that the Customer either:

- 4.1.1 owns the freehold title to the relevant Site; or
- 4.1.2 has obtained consent in writing from the owner of the freehold title of the relevant Site confirming that it agrees to the Charge Point(s) being Installed at its relevant Site.

4.2 Following issue and acceptance of an Order, Greendawn subsequently discovers that the Customer does not own the freehold title to the relevant Site or has not obtain the consent as required by clause 4.1(b), or that Hazardous Substances or archaeological finds are detected, or that pre-existing electrical, conducting media or structural issues (including location of reinforced concrete) with the Site are identified, then:

- 4.2.1 Greendawn may notify the Customer that it will not Install the relevant Charge Point(s) and will not be in breach of the Contract(s) for failing to undertake the applicable Installation; or
- 4.2.2 Greendawn may inform the Customer that Additional Works are required to enable Installation at the Site. If Additional Works are required pursuant to this clause 4.2.2, the Customer will either;

- (a) install the relevant Charge Point(s) as part of the Order and the terms of clause 4.3 shall apply; or

- (b) notify Greendawn that it no longer wishes to proceed with the proposed Installation.

4.3 The Additional Works Quotation shall remain open for acceptance by the Customer for a period of twenty one (21) days from the date of issue. Where the Customer gives notice of agreement to the Additional Works Quotation, Greendawn shall be bound to deliver the Additional Works (subject to the terms hereof), and the Customer shall be deemed to have instructed Greendawn to carry out the Additional Works pursuant to this Contract.

4.4 Where notice is given either under clause 4.2.1 or clause 4.2.2, or written notice is not given by the Customer in accordance with clause 4.3 then Greendawn shall be entitled to recover from the Customer:

- (a) the cost of the relevant Charge Point(s) and all costs of Installation(s) incurred up to the date of such notification under clause 4.2.1 or clause 4.2.2, or the date the Additional Works Quotation is given under clause 4.3 (as applicable); and,
- (b) any and all claims, liabilities, costs, losses, and expenses (including third party claims and cancelled orders) that Greendawn has or will incur, arising from or in connection with the relevant Installation(s) as that date the Additional Works Quotation is given under clause 4.3 (as applicable).

5. Site Survey

5.1 Subject to the terms of clause 4, the Installer will contact the Customer to arrange a convenient time to attend the Site(s) to conduct the Site Survey(s). Once an appointment has been arranged with the Installer, the Customer must provide at least twenty-four (24) hours' notice to rearrange that appointment. In the event the Customer needs to re-arrange or cancel an appointment, the Customer should contact Greendawn's customer care team by email at connect@greendawn.co.uk. If the Customer fails to provide the required notice, Greendawn may charge the Customer a cancellation fee of up to £[150] ("Cancellation Fee").

5.2 On the agreed date for each Site Survey, the Installer will attend the Site(s) and undertake the relevant Site Survey.

5.3 The Installer will determine as part of the Site Survey whether, in

its opinion, the relevant Site is suitable for Installation and if the Installer determines:

- 5.3.1 the Site is suitable, clause 5.4 shall apply;
- 5.3.2 the Site is not suitable, then Greendawn will confirm in writing the reasons and the terms of clause 5.6 shall apply; or
- 5.3.3 that Additional Works are required to enable Installation at the Site and the terms of clause 5.5 shall apply,

5.4 If the Site is suitable for Installation pursuant to clause 5.3.1, Greendawn will issue an Order to the Customer. The Order will be open for acceptance by the Customer validly signing the Order within a period of twenty one (21) days from the date thereof. Following the Customer's valid execution of the Order, Greendawn shall be bound to deliver the Services (subject to the terms hereof), and the Customer shall be deemed to have instructed Greendawn and accepted the terms of the Contract, including the Charge Point Software Provider's terms and conditions.

- 5.5 If AdditionalWorks are required pursuant to clause 5.3.3, Greendawnwillnotify the Customer who will either;
 - 5.5.1 instruct Greendawn to include an Additional Works Quotation as part of the Order, whereupon the terms of clause 5.4 shall apply; or,
 - 5.5.2 advise Greendawn that it no longer wishes to proceed with the proposed Installation.
- 5.6 If;
 - 5.6.1 the Site is not suitable for installation pursuant to clause 5.3.2; or,
 - 5.6.2 the Customer does not sign an Order pursuant to clause 5.4; or,
 - 5.6.3 the Customer does not instruct an Additional Works Quotation pursuant to clause 5.5,

the Customer shall pay the Site Survey cost of £600.00 plus value added tax together with any other fees or costs incurred by Greendawn undertaking the Site Survey including those paid to alocal authority or electricity distribution network operator.

6. Installation

6.1 If the Parties agree to proceed with an Installation pursuant to clause 2, on the agreed date for Installation, the Installer will:

- 6.1.1 deliver and Install the Charge Point(s) at the Site(s) with reasonable skill and care and at the agreed time, all in accordance with the terms of the Contract;

- 6.1.2 provide the Customer's representative with a Charging Card or Key Fob (as specified in the Order).

6.2 Greendawn will procure that the Installer:

- 6.2.1 performs all Installations with reasonable skill and care and in a good and workmanlike manner; and
- 6.2.2 complies with all relevant legislation, regulations and other requirements of any relevant government or governmental agency.

6.3 Each Party shall comply with its respective obligations under CDM Regulations. The Customer will be the client for the purposes of the CDM Regulations. Greendawn shall be the principal contractor and (where required) the principal designer.

6.4 For the avoidance of doubt, the Customer and Greendawn agree that all liability in respect of Hazardous Substances in, on, under or emanating from the Sites and/or identified by Greendawn whilst undertaking the Installation shall be the sole responsibility of the Customer.

6.5 If Greendawn is unable to complete the Installation within the timescales set out in the Order due to any act, default or omission by the Customer or its employees, agents or sub- contractor, Greendawn shall be entitled to increase the Installation Charge to recover any costs incurred as a consequence of such delay.

6.6 Except as set out in the Contract, all warranties, express or implied, including but not limited to any representation or warranty, quality or fitness for purpose that the Installation and/or Charge Point will meet the Customer's requirements, shall be excluded to the extent permitted at law.

- 6.7 Greendawn shall not be obliged to begin the Installation until it has received payment in accordance with clause 7.2 of these Terms and Conditions.

7. Invoicing and Payment

7.1 The Installation Charge is exclusive of VAT and in relation to each payment to Greendawn under this Contract, the Customer shall in addition pay the amount of any VAT properly chargeable in respect of it.

- 7.2 On the date the Contract is entered into, the Advance Payment shall be paid by the Customer to Greendawn.

7.2 Following completion of the Installation, Greendawn shall make an application for payment for the Installation Charge less any payment received under Clause 7.2.

- 7.3 The due date for any payments under this Contract shall be the date the application for payment is received. Submission of an invoice by Greendawn to the Customer shall be deemed to be an

application for payment. The final date for payment shall be seven (7) days from the due date. The Customer shall pay the sum stated in the application for payment to Greendawn by the final date for payment.

- 7.4 In the event the Customer fails to make payment in accordance with Clause 7.3, Greendawn will charge the Customer interest from the final date for payment until payment is made in full at 8% above the Bank of England base rate.

7.5 For the avoidance of doubt, Greendawn shall be under no obligation to Energise a Connection Point until all sums due to Greendawn hereunder have been settled.

8. Customer Obligations

8.1 The Customer agrees to promptly provide any information reasonably required or requested by Greendawn and/or the Installer and to comply with all reasonable requests of Greendawn and/or the Installer to enable Greendawn and/or the Installer to undertake the Site Survey, prepare an Order and/or complete an Installation. Non-compliance with any such requests may result in a delay in completion of a Survey or Installation.

- 8.2 The Customer agrees to grant to Greendawn and/or the Installer safe, full, free and unobstructed access to any Site(s) as may be reasonably required to undertake the Site Survey and carry out an Installation and any maintenance or repair works thereafter, as applicable during normal business hours (between 7:00 and 19:00 hours, Monday to Friday except for bank holidays) and any other times as agreed between the Parties. If the Customer or a third party prevents Greendawn from the entering the Site or adjacent land, resulting in Greendawn being unable to undertake the Installation, Greendawn shall not be deemed to be in breach of the applicable Contract and any additional costs properly incurred by Greendawn as a consequence shall be added to the Installation Charge.

- 8.3 The Customer shall exclude and reserve from the conveyance, lease or transfer of the Site(s), the right for Greendawn and DNO to install electric cables required for the Installation and thereafter to use, inspect, repair, replace and maintain such cables and the Charge Point, subject to Greendawn making good any damage caused as a consequence of exercising such right.

- 8.4 The Customer shall not in any way obstruct or impede the Installation. If the Customer fails to allow Greendawn proper access to carry out the Installation, Greendawn may notify the Customer in writing that, unless the Customer corrects the failure by 4 p.m. on the seventh day following the notice, the relevant Site will be deemed to be unsuitable for the Installation. If the Customer does not correct the failure by the seventh day, Greendawn may then write to the Customer advising that the relevant Site has been deemed to be unsuitable for the Installation and the Customer shall be liable to pay to Greendawn costs set out in clause 5.6.

9. Charge Point and Installation Guarantee

- 9.1 The Charge Point(s) will benefit from a warranty for a period of [five years] with effect from the date of Installation as set out in the Specification.

- 9.2 The Installation shall be subject to a defects liability period of [12 months] with effect from the date of Installation. For the avoidance of doubt, Greendawn will not be responsible for the following matters or any defects or damage arising therefrom;

- 9.2.1 damage or defects caused by the Customer or those for whom the Customer is responsible, including employees, agents, contractors, subcontractors; damage or defects caused by third parties, including the Charge Point Software Provider and end consumers of the Charge Point; any matters excluded under the Charge Point warranty referred to in clause 9.1; any damage or defects caused by Force Majeure; or, damage, defects or interruption due to electricity distribution network operator or the Customer's electricity supplier; or, the Customer Works; or, electrical control, hardware or system faults at the Site that pre-date the Installation; or any defects regarding the Installation after the expiry of the defects liability period set out in this clause 9.2.
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- 9.2.8

- 9.3 In the event the Customer requires spare or replacement Charging Cards or Key-Fobs, it should contact Greendawn's customer care team by email at connect@greendawn.co.uk to purchase additional Charging Cards or Key-Fobs.

- 9.4 The Customer will indemnify Greendawn in relation to any claims, demands, costs or charges resulting from the Customer Works.

10. Liability

- 10.1 Subject to Clause 10.3, if Greendawn is responsible for any physical damage to the Customer's tangible property arising out of or in connection with the Contract, Greendawn's total aggregate liability to the Customer will be £500,000 (five hundred thousand pounds). For any other matters arising under the Contract for which Greendawn is responsible, Greendawn's total aggregate liability shall not exceed the value of the Installation Charge for such Contract.

- 10.2 Subject to Clause 10.3, Greendawn will not be responsible for:

- 10.2.1 any direct or indirect financial loss or damage, for example loss of profit, income, business, contract or goodwill, or any indirect or consequential losses;

- 10.2.2 any losses that Greendawn could not have reasonably foreseen at the time of entering into the Contract; any losses suffered as a result of a third party
- 10.2.3 (however this is caused), including the Chargepoint Software Provider and end consumers of the Charge Point; or any defects in the ChargePoint, Connection Point and/or Distribution System which are a result of or attributable to the Customer Works; any losses that are due to the Customer's acts, omissions, negligence or default.

10.3 Nothing in the Contract shall limit Greendawn's responsibility for death or personal injury caused by Greendawn's negligence or for fraud.

10.4 Both Parties shall insure and maintain insurance against under the Contract at an appropriate level. For the avoidance of doubt, the Customer is responsible for notifying its buildings and contents insurers that the Installation is to be carried out.

10.5 This Clause shall survive the termination of the Contract.

11. Termination For Bankruptcy And Insolvency

11.1

If either Party becomes bankrupt or insolvent or is the subject of similar proceedings or has a receiving order made against it or compounds with its creditors or (being a corporation) is wound up (not being a members voluntary winding up for the purpose of amalgamation or reconstruction) or has an administration order made against it or carries on its business under an administrator or a receiver or manager for the benefit of its creditors or any of them (the "Defaulting Party"), the other Party shall be entitled to terminate the Contract(s) forthwith by giving written notice to the Defaulting Party or to the administrator, receiver, manager or liquidator or to any person in whom the Contract may become vested, in which event the other Party may, without prejudice to its other rights and remedies, recover all costs incurred as a result of such cancellation.

12. Intellectual Property Rights

12.1 All Intellectual Property Rights produced from or arising as a result of the performance of the Contract shall, so far as not already vested, be the property of Greendawn, and the Customer shall do all that is reasonably necessary to ensure that such rights vest in Greendawn by the execution of appropriate instruments or the making of agreements with third parties.

12.2 To the extent necessary for the Services, and subject to payment to Greendawn of all fees due, Greendawn shall ensure it

has adequate and appropriate rights to allow the Customer to use any third party Intellectual Property Rights Greendawn uses in complying with its obligations under the Contract.

13. Confidentiality

13.1 Each Party shall treat the details of the Contract, and any documents and information made available in relation thereto as private and confidential and shall not publish or disclose the same to any person (save insofar as may be necessary for the purposes of the Contract) without the prior written consent of the other Party.

14. General Terms

14.1 If either Party is unable to perform their obligations pursuant to the Contract due to Force Majeure, such Party can direct that delivery be postponed until the end of such disruption. If such disruption continues for a period in excess of 90 days, either Party shall be entitled by written notice to the other Party to terminate the Contract immediately. In such an event, the sole liability of the Customer shall be to pay Greendawn for any services delivered prior to the postponement.

14.2 These Terms & Conditions together with the contents of any Contract are the entire agreement between the Parties and supersede all prior agreements between the Parties.

14.3 The Customer shall not assign or transfer any of its rights or obligations under the Contract without Greendawn's prior written consent.

14.4 Greendawn may assign, grant security or declare a trust over all or any of its rights (including the right to recover unpaid monies) or interests under the Contract without the Customer's prior consent.

14.5 If a Party does not exercise its right to enforce a particular clause, such waiver does not preclude a Party from exercising such right in the future.

14.6 Any notice given under the Contract shall be in writing and shall be served by delivering it personally or sending it by pre-paid recorded delivery or registered post to the relevant party at its registered office for the time being or by email. Any such notice shall be deemed to have been received: (a) if delivered personally, at the time of delivery; (b) in the case of pre-paid recorded delivery or registered post, 48 hours from the date of posting; (c) . Copies of all notices issued in accordance with this clause shall be sent to the attention of [Greendawn by email at connect@greendawn.co.uk](mailto:connect@greendawn.co.uk)

- 14.7 If any provision of the Contract shall be declared invalid, unenforceable or illegal, such provision shall be severed and such invalidity, unenforceability or illegality shall not prejudice or affect the remaining provisions of the Contract.
- 14.8 No third party is entitled to enforce any term of the Contract whether pursuant to Contracts (Rights of Third Parties) Act 1999 or otherwise.
- 14.9 The Contract shall be governed by the laws of England and Greendawn and Customer hereby submit to the exclusive jurisdiction of the Courts of England.
- 14.10 With respect to all disputes, the Parties shall first seek to resolve such matters by referring the matter(s) in dispute to
- senior representatives within each Party's organisation, and thereafter the Parties may refer the matter to the courts.
- 14.11 Without prejudice to clause 14.10, the Parties at any time may notify the other of its intention to refer a dispute or difference arising under this Contract for adjudication in accordance with Part 1 of the Scheme for Construction Contracts (England and Wales) Regulations 1998. The adjudicator to whom the dispute is referred is such a person as the Parties may choose by mutual agreement or such other person as may be appointed as the adjudicator on the request of either party by the President (or his duly authorised representative) of the Royal Institution of Chartered Surveyors.

Find Out More



Connect@Greendawn.co.uk



0345 512 0044



www.greendawn.co.uk



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